



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

August 16, 2021

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 20914
(FIRST REVISION)

EXPIRATION DATE: 2025-07-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Silk Way West Airlines, LLC
Baku, Azerbaijan

US AGENT: The Wicks Group, PLLC
Washington, DC
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of explosives forbidden aboard cargo-only aircraft. This special permit provides no relief from the Hazardous Materials Regulations (HMR) or the International Civil Aviation Organization's Technical Instructions for the Safe Transport of Dangerous Goods by Air (ICAO TI) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
 - d. This special permit serves as an "exemption" as defined in 1;3.1.1 of the ICAO TI and as a "Competent Authority Approval" as defined under 49 CFR § 107.1.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180 and the ICAO TI.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101 Hazardous Materials Table Column (9B), § 173.27(b)(2), § 175.30(a)(1), and Columns 12 and 13 of Table 3-1 of the ICAO TI in that the hazardous materials are forbidden aboard cargo aircraft, except as specified herein.

5. BASIS: This special permit is based on the application of Silk Way West Airlines, LLC dated June 14, 2021, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Division 1.1, 1.2, 1.3, and 1.4 hazardous materials designated as “Forbidden” in Column (9B) of the § 172.101 Hazardous Materials Table or “FORBIDDEN” in Columns 12 and 13 of Table 3-1 of the ICAO TI	1.1, 1.2, 1.3, or 1.4	As appropriate	N/A

*All explosive materials must be approved as required by § 173.56.

- a. PACKAGING: Prescribed packaging is as authorized by the HMR.
- b. Transportation under the terms of this special permit is only authorized in support of the United States Government’s or ally governments’ national security operations.
- c. Only fourteen shipments are authorized under the terms of this special permit.
- d. Shippers (offerors) must be a grantee to a special permit issued by the competent authority of the United States that authorizes the grantee (the shipper) to offer hazardous materials covered under the terms of this special permit to the grantee of this special permit.
- e. Prior to accepting hazardous materials covered under the terms of this special permit, the grantee of this special permit must verify that the shipper is a grantee to a special permit issued by the competent authority of the United States that authorizes the grantee (the shipper) to offer hazardous materials covered under the terms of this special permit.
- f. Transportation of hazardous materials under the terms of this special permit is only authorized to, from, or within the United States. Transportation of hazardous materials completely outside of the United States is not authorized under the terms of this special permit.
- g. The following hazardous materials are not permitted to be carried aboard a cargo aircraft under the terms of this special permit:

- (1) Materials designated as “Forbidden” only in Column (9A) of the § 172.101 Hazardous Materials Table or “FORBIDDEN” only in Columns 10 and 11 of Table 3-1 of the ICAO TI;
 - (2) Materials identified in § 173.21;
 - (3) Materials designated as “Forbidden” in Column (3) of the § 172.101 Hazardous Materials Table;
 - (4) Materials identified in 1; 2.1 of the ICAO TI;
 - (5) Materials designated as “FORBIDDEN” in Columns 2 and 3 of Table 3-1 of the ICAO TI;
 - (6) Materials designated as forbidden for transport aboard an aircraft by a special provision in the HMR or the ICAO TI (e.g., Special Provision A170 of the ICAO TI);
 - (7) Materials packaged in bulk packaging as defined in § 171.8; or
 - (8) Class 7 materials (including limited quantity or excepted quantity Class 7 hazardous materials).
- h. All requirements in the HMR and the ICAO TI apply, except as specified herein.
- i. All packages must be blocked and braced to prevent movement.
- j. Each operation conducted under the terms of this special permit is only authorized when aircraft is the only means of transportation.
- k. AUTHORIZED EXPLOSIVES: Explosives authorized in paragraph 6 that are forbidden for transportation aboard aircraft in the HMR and the ICAO TI, may be accepted and transported in cargo aircraft subject to the conditions stated herein.
- l. MAXIMUM WEIGHT: The maximum weight of the authorized hazardous materials may not exceed the lesser of the lift capabilities of the designated cargo-only aircraft used for transport or 25,000 kg net weight (15,000 net explosive weight).
- m. AUTHORIZED PERSONS ABOARD AIRCRAFT: No person other than a required flight crewmember, an FAA inspector, the shipper or consignee of the material or a representative of the shipper or consignee so designated in writing, or person necessary for handling the material may be carried on the aircraft.
- n. ADVANCED NOTICE OF FAA OFFICE OF HAZARDOUS MATERIALS SAFETY: The operator of the aircraft must notify the FAA Office of Hazardous Materials Safety (9-AWA-AXH-SPFlightNotifications@faa.gov) and the Principal

Hazardous Material Inspector (PHI) in the region where the flight will originate. This notification must be given at least 72 hours in advance of plans to operate under the special permit, unless prior arrangements have been made with the Office of Hazardous Materials Safety. The notification must include the point of departure, intermediate stops, destination(s), and a loading and departure schedule. If a flight schedule deviates more than four hours from the originally scheduled departure time, the operator of the aircraft must immediately notify 9-AWA-AXH-SPFlightNotifications@faa.gov. Alternative notification procedures may be established subject to the written approval of the FAA Office of Hazardous Materials Safety.

o. In addition to the notification in paragraph 7.n., the grantee of this special permit must notify and be given authorization by the Pipeline and Hazardous Materials Safety Administration's Office of Hazardous Materials Safety via email at specialpermits@dot.gov. This notification must be given at least 72 hours in advance of plans to operate under the special permit.

p. ADVANCE PERMISSION FROM AIRPORT: The operator of the aircraft must have advance permission from the owner or operator of each manned airport where the material is to be loaded or unloaded or where aircraft is to land while the materials are on board. When the destination is changed after departure because of weather or other unforeseen circumstances, permission from the owner or operator of the alternate airport must be obtained as soon as practicable.

q. FLIGHT PLAN: This special permit does not waive any flight plan requirements inside or outside of US airspace.

r. LOADING AND UNLOADING: Loading and unloading operations under this special permit must comply with the following:

- (1) The loading and unloading of the aircraft must be conducted at a safe distance from heavily populated areas and from any place of human abode or assembly. However, at an airport where the airport owner or operator or authorized representative thereof has designated a specific location for loading or unloading, the explosives may not be loaded or unloaded at any other location.
- (2) Carriage of explosives under this special permit is subject to the same limitations and conditions specified for their transportation by motor vehicle in § 177.835(g).
- (3) During loading or unloading, no person may smoke an electronic cigarette, smoke or carry a lighted cigarette, cigar or pipe or operate any device capable of causing an open flame or spark within 50 feet of the aircraft.
- (4) No fueling operations of the aircraft may be conducted during loading and unloading of the explosives.

s. REQUIREMENTS DURING OPERATION OF AIRCRAFT: Operation of the aircraft during takeoff, en route, and landing must be conducted at a safe distance from heavily populated areas.

(1) Before movement of the aircraft, prior to takeoff, and prior to entering an airport traffic area, the pilot of the aircraft must notify the control tower of the class(es) of explosive(s) on board, and request that this information be released to the appropriate airport officials. This notification must be either communicated by radio transmission or facsimile transmission.

(2) In the event of a diversion from the scheduled route of flight to an airport that was not previously scheduled, the flight crew must notify the control tower during the approach phase of the amount of each class of explosives on board and request this information be relayed to the appropriate airport officials. This notification must be either communicated by radio transmission or facsimile transmission. For airports without control towers, this communication must be made to the Flight Service Station nearest the airport of intended landing.

(3) When under radar control during the approach and landing phase, the pilot must request appropriate vectors to avoid heavily populated areas.

(4) Whenever explosives are on board the aircraft, no person on the aircraft may smoke an electronic cigarette, smoke or carry a lighted cigarette, cigar, or pipe, or operate any device capable of causing an open flame or spark.

t. PILOT REQUIREMENTS: The operator of the aircraft must ensure the following with respect to pilots of aircraft operating under this special permit:

(1) A minimum of two pilots is required aboard any multi-engine aircraft carrying explosives under this special permit.

(2) Each pilot of the aircraft must be provided written instructions stating the conditions and limitations of the operations being conducted and the name of the official(s) granting the advance permission required by paragraph 7.p. above except when a landing permit has been granted by an agency of the Department of Defense for landing at a military installation.

(3) Each pilot of an aircraft being operated under this special permit must have received formal training on the requirements of 49 CFR Parts 170-180 that are applicable to his duties and be thoroughly familiar with the specific requirements of this special permit.

u. ATTENDANCE OF EXPLOSIVES: The explosives must be attended at all times they are in possession of the operator (from the time of receipt from the consignor until time of receipt by the consignee) unless placed in an explosive storage magazine that is approved by the Federal, State, or local authority or at a location on a military installation designated by appropriate military authorities.

v. SEGREGATION OF EXPLOSIVES: Incompatible explosives may be transported on the same aircraft provided they are not placed next to each other or in a position that would allow a dangerous interaction.

8. SPECIAL PROVISIONS:

a. The aircraft operator must maintain permanent records of each flight during which explosives are carried under the authority of this special permit. This record must be made available at its principal business office to representatives of the Federal Aviation Administration and submitted to the Associate Administrator for Hazardous Materials Safety (AAHMS) upon request. The record for each flight must include:

- (1) Name of the shipper(s).
- (2) Name of the consignee(s).
- (3) Origin airport(s).
- (4) En route airport(s).
- (5) Destination airport.
- (6) Proper shipping name and class of each explosive.
- (7) Net weight of each explosive.
- (8) Name of each pilot and any other person aboard the aircraft.
- (9) Registration number of the aircraft.
- (10) Name of the individual representing the owner or operator of each manned airport who granted advance permission for the aircraft to land or take-off while it was being operated under this special permit.

The record required by this paragraph must be maintained current to within 72 hours of each flight under this special permit. The granting of this special permit does not waive any FAA airworthiness operating requirements or the need to obtain appropriate FAA operating authorizations.

- b. This special permit does not grant the authority to use foreign controlled airspace or airports outside the United States.
 - c. The safe operational weight limit of the aircraft may not be exceeded.
 - d. This special permit does not waive any FAA airworthiness requirements or the need to obtain other required FAA authorizations.
 - e. This special permit in no way affects the need to obtain any required authorizations from other agencies of the United States Government or from the competent authorities of the States of origin, transit, over flight, and destination of the consignment, as well as the State of the Operator.
9. MODES OF TRANSPORTATION AUTHORIZED: Cargo-only aircraft.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport packages covered by this special permit.
- a. AUTHORIZED AIRCRAFT: Aircraft used under this special permit must be authorized as part of an FAA 14 CFR Part 129 Operating Certificate.
 - b. OPERATIONS MANUAL: FAA 14 CFR Part 129 operations must be conducted in accordance with conditions and limitations specified in the certificate holder's FAA-approved operations manual.
 - c. AUTHORIZED PERSONS ABOARD AIRCRAFT: No person may be carried on the aircraft other than as authorized by 14 CFR Part 129.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

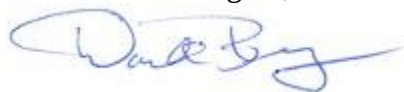
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: NICKS